

Mahendra Pratap Singh v. Kanpur Electricity Supply Company Ltd. (KESCO)

High Court of Judicature at Allahabad · Division Bench · 19 September 2022 · Writ - C No. 40419 of 2009 · **Writ petition dismissed for want of prosecution; interim stay of recovery vacated.**

HEADNOTE

A consumer challenged a KESCO assessment, affirmed on 17 June 2009, on the footing that a burnt-meter inspection and test had not been carried out under paragraphs 5.6 and 5.8 of the U.P. Electricity Supply Code, 2005, that the assessment rested on a report of the meter-supplying company rather than the licensee's or an independent laboratory, and that a request for testing by the Director, Electrical Safety had been ignored. The Division Bench recorded that the submission needed scrutiny, called for a counter affidavit, and stayed recovery. Years later, none appearing even in the revised call, the writ was dismissed for want of prosecution and the interim order vacated. The Clause 5.6/5.8 challenge was not decided on the merits.

FACTUAL SUMMARY

Mahendra Pratap Singh challenged a KESCO assessment affirmed on 17 June 2009. He had reported a burnt meter. A notice dated 1 November 2008 required him to appear for inspection on 5 November 2008 at Udaipur, but was dispatched only on 5 November 2008. He contended that the assessment rested on a report of the company that had supplied the meter, not of the licensee's laboratory or an independent laboratory, and that inspection had not followed paragraphs 5.6 and 5.8 of the U.P. Electricity Supply Code, 2005. After learning of the notice he sought testing by the Director, Electrical Safety, which was not done. The dispute had earlier been remitted for decision of his objection, but the Executive Engineer, he said, did not advert to burnt-meter testing procedure. Recovery was stayed on 11 August 2009. After listings through 2009 and 2018, none appeared to press the writ on 19 September 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

burnt-meter testing; writ dismissed for want of prosecution

HOLDING

On 11 August 2009 the Court recorded the petitioner's challenge that inspection and testing of a burnt meter had not been done in accordance with paragraph 5.6 read with paragraph 5.8 of the U.P. Electricity Supply Code, 2005, that the assessment rested on a report of the meter-supplying company rather than the licensee's or an independent laboratory, and that a request for testing by the Director, Electrical Safety had not been acted on; it held that the submission needed scrutiny, called for a counter affidavit, and stayed recovery on the assessment affirmed on 17 June 2009. On 19 September 2022, none having appeared for the parties even in the revised call, the writ was dismissed for want of prosecution and the interim order vacated, without deciding that challenge. ¶ 1

FLAG Thin procedural disposal. The 11.8.2009 Division Bench (Ashok Bhushan and Ram Autar Singh, JJ.) recorded the Clause 5.6/5.8 burnt-meter testing challenge and stayed recovery; the 19.9.2022 Bench dismissed for want of prosecution without deciding those points. Paragraph 5.8 is as invoked by the petitioner; it was not construed.

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance After an interlocutory stay of recovery on a Clause 5.6/5.8 burnt-meter testing challenge, the writ was dismissed for want of prosecution when none appeared even in the revised call, and the interim order was vacated, leaving the assessment undecided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSPECTION AND TESTING OF THE BURNT METER COMPLIED WITH PARAGRAPHS 5.6 AND 5.8 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Recorded as needing scrutiny on 11.8.2009; never adjudicated after dismissal for want of prosecution. ¶ 1

NOT DECIDED — WHETHER THE ASSESSMENT COULD REST ON A REPORT OF THE METER-SUPPLYING COMPANY RATHER THAN THE LICENSEE'S LABORATORY OR AN INDEPENDENT LABORATORY

¶ 1

NOT DECIDED — WHETHER THE METER HAD TO BE TESTED BY THE DIRECTOR, ELECTRICAL SAFETY, AND WHETHER THE EXECUTIVE ENGINEER ON REMAND ADVERTED TO BURNT-METER TESTING PROCEDURE

The validity of the assessment affirmed on 17.6.2009 was likewise left open. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.